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EXTRAORDINARY

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## PART I : SECTION (I) — GENERAL

### Government Notifications

L.D.B 24/51(iv).

#### THE MOTOR TRAFFIC ACT (CHAPTER 203)

REGULATIONS made by the Minister of Transport and Civil Aviation under Section 237 of the Motor Traffic Act, (Chapter 203) read with Sub-section (2) of Section 5 and Section 19 of the aforesaid Act.

NIMAL SIRIPALA DE SILVA,  
Minister of Transport and  
Civil Aviation.

Colombo,  
08th September, 2017.



### Regulations

1. These regulations may be cited as the Motor Traffic (Motor Tricycle) Regulations, No. 04 of 2017 and shall come into operation on October 1, 2017.

2. (1) Every owner of a motor tricycle who uses such motor tricycle for the purpose of transportation of persons for hire or otherwise shall ensure that the off side (right side) opening to the passenger's compartment of the motor tricycle is partially or fully closed permanently to prevent any entry or exit by a passenger.

(2) (a) A driver of a motor tricycle shall not allow any passenger to enter into or exit from the motor tricycle by scaling over the off side (right side) of the motor tricycle.

(b) No person shall enter into or exit from the motor tricycle by scaling over the off side (right side) of the motor tricycle.

3. An owner of a motor tricycle shall ensure that—

(a) the support of all seats of the motor tricycle shall be firmed in position and at least 382 and 230 millimeters measured in a straight line along the front of each seat shall be allowed for each adult and child respectively. For the purpose of this regulation, children between three years to twelve years shall be counted as one child.

(b) the shortest distance between the front edge of the driver's seat and vertical plane passing through the nearest edge of the panel shall not be less than 300 millimeters ;

(c) the shortest distance between the front edge of the passenger seat and vertical plane passing through nearest point of the back rest of a front seat shall not be less than 230 millimeters ;

(d) the minimum clear distance between the back rests of any consecutive two seats fitted shall not be less than 660 millimeters ;

(e) the seats facing each other shall not be fitted to a motor tricycle ; and

(f) the height of the vehicle shall not be more than one hundred and fifty percent of the width.

4. No person other than the driver of the motor tricycle shall be carried in the driver's compartment or on the driver's seat.

5. The speed limit of the motor tricycle shall be subject to the provisions of the Motor Traffic (Speed Limits) Regulations, No. 1 of 2012 published in the *Extraordinary Gazette* No. 1763/26 of June 22, 2012.

6. The owner or driver of a motor tricycle shall not permit any person to distribute any advertisement, leaflet or hand bill or to carry any goods extending out from the vehicle while such motor tricycle is in motion on the road.

7. The driver of a motor tricycle which is in motion or parking shall not use or shall not cause to use any instrument or equipment emanating sound so as to disturb or annoy other road users. The sound shall be regulated to ensure that it is confined within the motor tricycle and intended for the hearing only of the occupants therein.

8. (1) An owner or a driver of a motor tricycle shall ensure that -

- (a) a speedometer is fitted to the motor tricycle in such a position to indicate clearly at all times to the driver of the motor tricycle the speed at which the motor tricycle is driven
- (b) electrically or electronically operated windscreen wiper is fitted in such a manner that the driver of the motor tricycle could obtain an unobstructed view to the front of the motor tricycle ;
- (c) the motor tricycle is fitted with pneumatic tyres and if they are in different sizes shall in like manner, carry at least one spare inflated tyre from each size ;
- (d) every motor tricycle carries the necessary devices, which can be used to fit the spare inflated tyre quickly to a wheel or axle while the motor tricycle stands on the road ; and
- (e) a cover is fitted to protect the driver and the passengers from weather conditions.

(2) An owner of a motor tricycle shall ensure that the following components are fitted to the motor tricycle and are in good and working condition—

- (a) two exterior rear view mirrors ;
- (b) head lamps with the head and dip beams and an indicator ;
- (c) tail or stop lamp ;
- (d) side direction indicator lamp ;
- (e) reverse lamp ;
- (f) parking lamps ; and
- (g) horn.

9. Where the motor tricycle is used for the purpose of carrying persons or goods for a fee or reward -

- (a) the following information shall be displaced behind the driver's seat to be clearly visible to passengers ;
  - (i) registration number ;
  - (ii) name and driving license number of the driver ;
  - (iii) a photograph of the driver (size : 65x50 millimeters) ; and
  - (iv) telephone numbers of the respective police stations where the vehicle is registered to inform in case of emergency ; and

(b) the driver of a motor tricycle shall -

- (i) behave in a civil and orderly manner ;
- (ii) not smoke ;
- (iii) not terminate the hiring before he has been discharged by the hire ; and
- (iv) carry passengers to their destinations by the shortest possible route within the shortest time unless otherwise requested by them,

at all times while he is on duty.

10. (1) Every owner of a motor tricycle who uses such motor tricycle for the purpose of transportation of persons or goods for hire or otherwise shall fix a taximeter which shall be operational at all times.

(2) Upon the payment of such fare, it shall be the duty of the driver of such motor tricycle to issue a receipt on the request of the passenger. Such receipt shall include the distance travelled, vehicle registration number, amount charged and the date of the receipt.

11. An owner of a motor tricycle shall ensure that no letters, figures or digits except descriptive information marked thereon by the manufacturer of the motor tricycle is marked on the front and rear of the motor tricycle.

12. The Motor Traffic (Motor Tricycle) Regulations, No. 01 of 2017 published in *Extraordinary Gazette* No. 2001/2 of January 09, 2017 are hereby rescinded.

13. In these regulations “motor tricycle” shall have the same meaning as in the Motor Traffic Act, (Chapter 203).